

BUILDING IN, NOT BOLTING ON: A MINERALS SECURITY FUNCTION FOR BAUCHI'S FUTURE STATE POLICE SERVICE

POLICY RECOMMENDATIONS

FOR THE HOUSE OF ASSEMBLY

- Engage the Sixth Alteration Bill now before the State Houses of Assembly, examining the constitutional safeguards, institutional structure and implications for Bauchi before taking a position on ratification.
- Use the current ratification period to develop and communicate Bauchi's institutional priorities for the subsequent operational framework, including provision for specialised sectoral policing capabilities where justified by evidence and state needs. Any future specialised capability should remain conditional on strong statutory safeguards, technical appointment criteria, professional oversight and institutional independence.

FOR THE EXECUTIVE COUNCIL AND MINISTRY OF NATURAL RESOURCES

- Begin identifying technical staff — geologists, licence-verification officers — who could be seconded to a future minerals enforcement function, drawing on the mine-title register recommended in the companion BMCC and mining land brief.
- Prepare a technical policy memorandum setting out Bauchi's requirements for minerals and extractives enforcement and position it for the next relevant federal legislative or implementation consultation on the National Policing framework.

WHY NOW?

The State Police constitutional amendment has now reached the 36 State Houses of Assembly. It requires approval by at least 24 states before the constitutional process can advance. The operational architecture for state policing is also still being developed nationally. Bauchi therefore has two immediate policy tasks: scrutinise the constitutional proposal now before its legislature, and prepare its institutional requirements before the implementing framework is settled.

Nigeria's state-police reform has entered a new stage. The constitutional amendment establishing the legal basis for State Police Services was transmitted to all 36 State Houses of Assembly on 16 September 2026 and now requires approval by at least 24 state legislatures. In parallel, the federal government is developing the operational framework that will govern how state policing would function in practice. For Bauchi, the policy window therefore remains open — but it has shifted from anticipating transmission to engaging the state-ratification and implementation-design stages.

Where the process actually stands

The Sixth Alteration (State Police) Bill has passed the National Assembly and was transmitted to all 36 State Houses of Assembly on 16 September 2026. Approval by at least 24 State Houses of Assembly is required, so the constitutional process is not yet complete and State Police Services are not yet operational. The separate National Policing framework concerns operational issues such as recruitment, training, funding, jurisdiction, discipline, oversight, firearms control and state readiness. Bauchi does not yet have an operational State Police Service, and any Bauchi-specific enabling and institutional arrangements remain future steps dependent on the national constitutional and legislative process.

Why that timing favours this brief

The constitutional question is now before the State Houses of Assembly, while important elements of the operational framework remain under development. This remains a design window for Bauchi: institutional requirements identified before the framework is settled are easier to advocate for than amendments sought after the architecture has hardened.

Why general policing is not built for mineral sites

Illegal and unregulated mineral extraction is not an ordinary policing problem. It requires the ability to identify ore, verify licences against a cadastral record, distinguish authorised from unauthorised extraction at a working site, and build a case that will hold against the specific legal defences a mining operation can raise. General-duty police are not trained or equipped for any of this. Civil-society commentary on Africa's illegalmining crisis describes ordinary police as routinely "bamboozled by legal counterclaims and regulatory loophole-jumping" that a mining-literate specialist unit would not.

Bauchi does not yet face illegal mining at the scale that produced South Africa's crisis — an estimated R49 billion in annual losses and seven tonnes of gold a year to unlicensed extraction. But the state's mineral portfolio is expanding, per the companion brief on BMCC and mining land governance, while its ability to verify what happens at any given site remains largely absent. A specialised minerals and extractives enforcement capability is therefore a policy option worth incorporating into Bauchi's institutional planning before the scale problem arrives, subject to the national constitutional and legislative process and to strong statutory safeguards, technical appointment criteria, professional oversight and institutional independence.

Two working models, neither a template

South Africa's SAPS–DMRE joint unit, created in 2022, is jointly staffed between the South African Police Service and the Department of Mineral Resources and Energy specifically so that mining-law and technical expertise sits inside the enforcement function rather than being called in after the fact.

India's Central Industrial Security Force, a roughly 170,000-strong force established by a 1969 Act to guard critical infrastructure, was granted statutory enforcement authority over coal mines in June 2026: CISF officers can now search vehicles and premises suspected of concealing illegally extracted coal and file complaints directly before competent courts. Neither is transplantable whole. What both illustrate, and what is transplantable, is the underlying mechanism: enforcement authority paired with technical verification capacity, housed in one function rather than split across agencies that do not talk to each other.

Why this is conditional

A specialised unit is only as independent as the body that houses it. Whatever Commission structure eventually governs Bauchi's state police service must itself be built with independent, technical-appointment provisions before a minerals unit is layered into it — a specialised unit inside a captured Commission would simply relocate the governance problem this brief is trying to prevent, not solve it.

Legislative status updated 23 September 2026: the State Police constitutional amendment was transmitted to all 36 State Houses of Assembly on 16 September 2026 and requires approval by at least 24 states to advance.